UNITED KABYE ASSOCIATION OF GHANA

(UKA) DIVEMA • EASTERN REGION BRANCH

Motto: "Unity • Culture • Progress and Service"

CONSTITUTION & BYE-LAWS

The Supreme Governing Charter and Operational Bye-Laws of the Branch

ARTICLE 1 NAME, LEGAL SUPREMACY & TERRITORIAL JURISDICTION

1. **Corporate Title:** The association shall be known, cited, and legally recognized as the **United Kabye Association of Ghana, Eastern Region Branch** (hereinafter referenced as "the Branch").
2. **Constitutional Primacy:** These Bye-laws are promulgated pursuant to the National Constitution of the United Kabye Association. The provisions of the National Constitution shall stand supreme; any clause within these local regulations that is found in conflict with the National Constitution shall, to the extent of such inconsistency, be void and of no effect.

ARTICLE 2 EXECUTIVE COMMITTEE COMPOSITION & TENURE OF OFFICE

1. **Executive Directorate:** The administrative governance, strategic execution, and custody of Branch affairs shall be vested in an Executive Committee comprising:
   - Branch Chairman and Vice Chairman
   - Branch Secretary and Vice Secretary
   - Treasurer and Financial Secretary
   - Branch Organizer, Women's Organizer, and Youth Organizer
   - Two (2) Non-Executive Executive Committee Members
2. **Electoral Mandate:** Executive officers shall be elected by universal secret ballot at an Annual General Meeting (AGM) by a simple majority vote of active members in verified good standing.
3. **Tenure & Term Limits:** Officers shall hold office for a definitive tenure of **Three (3) Years**. An officer shall be eligible for re-election for a maximum of one (1) consecutive term only, barring any individual from serving more than six (6) cumulative years within the identical portfolio.
4. **Casual Vacancies:** Any executive vacancy occurring prematurely by reason of death, incapacitation, resignation, or removal shall be filled via an extraordinary by-election within **Thirty (30) Calendar Days**.
5. **Removal & Impeachment:** An officer may be impeached and removed from office on grounds of persistent dereliction of duty, gross misconduct, moral turpitude, or financial defalcation upon an affirmative vote of two-thirds (2/3) of the General Assembly.

ARTICLE 3 FINANCIAL DUES, SUBSCRIPTIONS & DEFAULT PENALTIES

1. **Statutory Monthly Contribution:** Every registered member shall pay a mandatory monthly subscription of **GHC 20.00**, payable on or before the close of business on the final day of each calendar month.
2. **Fiduciary Collection:** All subscriptions and dues shall be received by the Financial Secretary and promptly transferred to, verified, and officially receipted by the Treasurer.
3. **Notice of Arrears:** A member who remains in default of monthly contributions for three (3) consecutive months shall be served an official written notice of arrears.
4. **Suspension of Privileges:** Persistent default exceeding six (6) months shall result in automatic disqualification from voting, forfeit of welfare entitlements, and suspension of active membership privileges until all outstanding liabilities are settled in full.
5. **Revision of Rates:** Adjustments to statutory subscription rates shall be deliberated and enacted solely during an Annual General Meeting.

ARTICLE 4 MEMBERSHIP ELIGIBILITY, QUALIFICATIONS & INDUCTION

1. **Lineage & Affiliation:** Membership is accessible to individuals of Kabye heritage by birth, marriage, or legal affiliation, as well as persons aligned with the cultural and welfare objectives of the Association.
2. **Legal Capacity:** Applicants must be at least eighteen (18) years of age and in full possession of their mental faculties.
3. **Residential Mandate:** Applicants must reside, work, or carry out demonstrable commercial activity within the Eastern Region of Ghana.
4. **Institutional Loyalty:** Prospective members must formally subscribe to the foundational principles, values, and bye-laws of the Association.
5. **Registration & Presentation:** An induction fee of **GHC 50.00** shall accompany the formal membership application, followed by formal presentation of the inductee at an Ordinary General Meeting.

ARTICLE 5 WELFARE SCHEME, RELIEF PACKAGES & BENEFACTIONS

1. **Vesting Period:** Entitlement to welfare packages is contingent on a mandatory qualification period of at least six (6) continuous months of active registration and financial good standing.
2. **Statutory Qualifying Events:** Welfare coverage and institutional support apply strictly to:
   - Childbirth and Naming Ceremonies
   - Solemnization and Celebration of Lawful Marriage
   - Severe Illness or Formal In-Patient Hospitalization
   - Bereavement (demise of an active member, legally married spouse, biological child, or parent)
   - Unforeseen Natural Calamity or Catastrophic Disaster
3. **Authorization of Benefits:** Standard donation schedules and welfare packages shall be prepared by the Executive Committee and submitted for approval by the General Assembly.
4. **Discretionary Relief to Non-Members:** Humanitarian aid to indigent non-member Kabye residents shall require prior approval by a two-thirds (2/3) majority vote of the General Assembly.
5. **Frequency Limitation:** No member shall receive multiple welfare disbursements within a single three (3) month window, save for emergency events certified by the Executive.
6. **Individual Assessment of Siblings:** Co-registered siblings and family members shall be treated as distinct individual policyholders with separate obligations and independent entitlements.

ARTICLE 6 GENERAL ASSEMBLY SESSIONS, QUORUM & VOTING PROCEDURES

1. **Regular Assembly:** The General Assembly shall meet bi-monthly, specifically on the **1st and 3rd Sunday of each calendar month at 2:00 PM** prompt.
2. **Quorum Requirement:** The deliberative quorum necessary for valid transactional business shall constitute one-third (1/3) of all registered members in verified good standing.
3. **Extraordinary Conventions:** Emergency meetings may be convened by the Branch Chairman or upon the written petition of not less than one-third (1/3) of the registered membership.
4. **Decision Thresholds:** General matters and operational resolutions shall pass by simple majority. Amendments, disciplinary penalties, and major policy decisions require a two-thirds (2/3) supermajority.
5. **Archival of Proceedings:** The Branch Secretary shall document, secure, and preserve accurate official minutes and records of all resolutions.

ARTICLE 7 OFFICIAL LANGUAGES & PLATFORM GOVERNANCE PROTOCOL

1. **Recognized Languages:** The official media of communication shall be **Kabiye, English, and Twi**. French is officially recognized and permitted during elder addresses.
2. **Proscribed Conduct:** Members shall not engage in insults, ethnic chauvinism, hate speech, partisan politicking, character assassination, or the dissemination of defamatory or pornographic material on any official platform.
3. **Moderation & Sanctions:** Platform administrators and the Chairman reserve summary authority to remove illicit content. Progressive discipline shall apply:
   - *First Offence:* Formal Written Caution.
   - *Second Offence:* Seven (7) calendar days suspension from all association forums.
   - *Third Offence:* Immediate referral to the Disciplinary Committee for formal statutory trial.

ARTICLE 8 FINANCIAL ADMINISTRATION, MANDATORY AUDIT & FIDUCIARY INTEGRITY

1. **Designated Accounts & Signatories:** All institutional capital shall be maintained in a recognized commercial bank or dedicated institutional Mobile Money (MoMo) account, with the Branch Chairman and the Treasurer serving as joint mandatory signatories.
2. **Accounting Standards:** The Treasurer shall maintain accurate, transparent, and auditable financial journals and ledgers.
3. **Receipt Administration:** The Financial Secretary shall issue serialized, authorized receipts for all dues and donations received.
4. **Periodic Reporting:** A reconciled financial statement shall be presented to the General Assembly at every ordinary meeting.
5. **Statutory Internal Audit:** An independent Internal Audit Committee of three (3) non-executive members in good standing shall audit all books and financial records annually prior to the AGM.
6. **Embezzlement & Restitution:** Any misappropriation or embezzlement shall result in immediate summary dismissal, total financial recovery, and civil and criminal prosecution under the laws of Ghana.

ARTICLE 9 DISCIPLINARY FRAMEWORK & CONSTITUTIONAL AMENDMENTS

1. **Amendment Procedure:** These Bye-laws may be amended, repealed, or reviewed only by a two-thirds (2/3) supermajority vote of the General Assembly at a duly convened session with certified quorum.
2. **Disciplinary Jurisdiction:** The Branch Executive Committee holds full authority to constitute an ad-hoc Disciplinary Committee to investigate allegations, preserve order, and recommend sanctions.

ARTICLE 10 CORPORATE SOCIAL RESPONSIBILITY & CIVIC ENGAGEMENT

1. **Quarterly Outreach:** The Branch shall undertake quarterly civic and charitable visitations to public healthcare centers, clinics, and orphanages, with or without material donations.
2. **Advance Notice:** The Executive Committee shall identify and notify the General Assembly of selected institutions at least one (1) month prior to the scheduled date.
3. **Funding:** CSR activities shall be financed through voluntary donations, approved special levies, or allocations from the welfare reserve as authorized by the Assembly.
4. **Organizing Committee:** A dedicated three-member Social and Welfare Committee shall coordinate logistics, delegations, and media.
5. **Public Reporting:** A formal operational summary and audited account of expenditure shall be presented to the assembly following every outreach.

FORMAL INSTRUMENT OF RATIFICATION & EXECUTION

Place of Adoption: _____

Date of Adoption: _____

Effective Date: _____

Branch Chairman	**Branch Secretary**
Name:	Name:
Signature: _____	Signature: _____

★ Long Live UKA! • Long Live Eastern Region Branch! ★

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